

The U.P. Electricity Supply Code in the Courts

Companion Reference — Categorised Digest of Principles · 229 principles across 263 decisions

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A. Statutory Architecture, Vires & Interpretation

11 PRINCIPLES · 13 CASE-APPLICATIONS

Clause heading not a limit on substantive scope 3 cases

Clause 6.5(b)'s heading ('Disputed Bills and Arrears') does not confine its scope; a supplementary bill grounded in a disputed meter reading is a disputed bill within the clause — resonates with the marginal-heading-not-an-aid-to-construction principle already tracked in this corpus (SCJ-059/060, Chandler v. DPP line).

SCJ-083 · Mohamdabad Cold Storage Private Ltd. (... 2007 All HC)

SCJ-086 · Mother India Refrigeration Industries ... 2007 All HC

SCJ-153 · Mohd. Sagir 2014 All HC

Code liberally construed for consumer 1 case

Supply Code regulations, being terms dictated by a monopoly supplier, are to be liberally interpreted in favour of the consumer; load-enhancement agreements are treated as continuations of the initial agreement.

SCJ-035 · Jharkhand State Electricity Board & Ot... 2021 SC

Law as of application date governs 1 case

A load-reduction application is governed by the Code as it stood when the application was made (here the unamended Clause 4.49 accepting bond/instrument), not by a later amendment introducing a bank-guarantee requirement.

SCJ-246 · L.M.L. Ltd. 2009 All HC

Law as of final assessment date 1 case

For determining which version of Section 126 (deposit condition, assessment rate) applies, the operative date is the date of the FINAL assessment, not the provisional assessment or the date the cause of action arose.

SCJ-047 · Lalit Kumar Kapoor 2011 All HC

Marginal heading not aid to construction 1 case

A clause's marginal heading (e.g. 'Defective Meters' for Clause 5.6) does not restrict its substantive scope; general principle of statutory construction applied to a Supply Code clause.

SCJ-059 · M/S Modern Rice Mill 2011 All HC

Precedent under superseded provisions does not govern post 2005 code 1 case

A judgment delivered under the provisions in force before the 2005 Code does not aid an applicant where the Code has since introduced a new mandatory requirement.

SCJ-236 · Iftakhar Ahsan 2014 All HC

Statute prevails over supply code 1 case

Where the Supply Code's assessment-rate provision is discrepant with the governing statute (Section 126(6)), the statute prevails.

SCJ-059 · M/S Modern Rice Mill 2011 All HC

Statutory contract silence does not bar statutory power 1 case

General administrative-law doctrine (statutory power survives contractual silence, subject to the Indian Aluminium exception for express valid fetters) with potential cross-application to electricity tariff/circular-enhancement disputes in this corpus (cf. SCJ-128's retrospective-circular-application doctrine, SCJ-123's...

SCJ-134 · The State of Haryana & Ors. 2026 SC

Statutory supply code supersedes administrative memorandum 1 case

A statutory Electricity Supply Code (framed under the ERC's statutory mandate) overrides and supersedes a pre-existing administrative office memorandum on the same subject, from the Code's effective date, given the Code's statutory character versus the memorandum's mere administrative character — a useful precedent on the hierarchy...

SCJ-137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 SC

Supply code read as whole not piecemeal 1 case

Provisions of the Supply Code must be construed together, in context, not in isolation — a specific clause (Clause 4.38(c)) cannot be relied upon divorced from the licensee's parallel obligations (Clause 4.36/6.15).

SCJ-113 · Satya Narayan 2013 All HC

Vires challenge requires pleaded foundation 1 case

A challenge to the vires of a Supply Code clause (here Clause 4.3(f)(v), on the ground Directors fall outside the s.2(15) 'consumer' definition) cannot be entertained where raised only in oral rejoinder submissions without any foundation laid in the writ petition itself.

SCJ-090 · Narendra Singh Panwar 2023 All HC

B. The Duty to Supply & Access to a Connection

13 PRINCIPLES · 20 CASE-APPLICATIONS

Clause 4.4 occupant connection on indemnity bond 5 cases

A tenant/occupier may obtain a new electricity connection via the Annexure 4.2 indemnity-bond route where the landlord withholds consent; this reinforces and extends the Clause 4.4 occupant-connection principle already tracked in this corpus (SCJ-085, Mohd. Ashfaq Khan) to the new-connection (not just restoration) context, and...

SCJ-115 · Seema Mansoor 2014 All HC

SCJ-190 · Mamta Tripathi 2015 All HC

SCJ-212 · Deepak Jain 2023 All HC

SCJ-085 · Mohd. Ashfaq Khan @ Ashfaq Khan 2025 All HC

SCJ-199 · Teena Sehgal 2026 All HC

Occupier entitled to connection on indemnity bond 2 cases

A genuine occupier (including a family member in separate possession) has a statutory right under s.43(1) to a connection and may furnish an indemnity bond (Annexure 4.2) where the owner's NOC is unavailable; the bond only excludes trespassers/house-grabbers.

SCJ-027 · Gaurav Sharma 2018 All HC

SCJ-033 · Husna Bano 2019 All HC

Right to electricity art21 2 cases

Supply of electricity is necessary for a life with dignity; disconnection for reasons not authorised by the Act/Code, for malafide purposes, violates Article 21.

SCJ-016 · Devendra Sharma 2011 All HC

SCJ-020 · Divya Sahani 2021 All HC

Supply code regulation cannot exceed parent act s.174 overriding 2 cases

The Supply Code is subordinate legislation framed under the Electricity Act; by s.174 the Act overrides and the Code cannot travel beyond the Act's assessment limits.

SCJ-227 · Vijay Pal Singh & Another 2010 All HC

SCJ-228 · Vijay Pal Singh 2010 All HC

Clause 3.4a covers enhancement not just new connections 1 case

Clause 3.4(a)'s mandatory independent-feeder requirement for the specified heavy industries applies to load-enhancement applications as well as new connections — a significant clarification refining SCJ-101 (Pawan Kumar Agarwal) and SCJ-094 (Northern Coalfield) on the scope of Clause 3.4.

SCJ-123 · Sigma Castings Ltd. & Another 2013 All HC

Landlord consent not required for tenant connection s.43 1 case

Under the s.43 duty to supply to an owner or occupier, a tenant/occupier cannot be refused a new connection merely because the landlord objects or withholds consent.

SCJ-210 · Radhe Shyam Singh 2014 All HC

Licensee duty to maintain supply and avoid imbalance 1 case

A licensee must maintain the requisite supply and not create a load imbalance; a technical complaint of over-loading is to be audited and decided by the competent authority after notice to affected parties.

SCJ-220 · Mohammad Rashid & Another 2014 All HC

Mandamus cannot override statutory distribution scheme 1 case

A writ of mandamus or an Article 142 direction to supply/continue supply cannot displace the substantive priority scheme of ss.529, 529-A and 530; residuary powers are supplementary, not a means to ignore statute.

SCJ-152 · U.P. State Cement Corporation Ltd. (In... 2007 All HC

Occupier must be authorised 1 case

The right of a tenant/occupier to a connection under the Code presupposes authorised occupation; it does not extend to a person against whom an unstayed eviction decree operates. (Qualifies the tenant-occupier entitlement recognised in Anand Kumar / SCJ-006.)

SCJ-021 · Ashok Kumar Sharma & Another 2024 All HC

Occupier needs proof of occupancy plus indemnity bond clause 4.4 1 case

A non-owner occupier may obtain a connection on an indemnity bond (Annexure 4.2) in lieu of owner's consent, but only on producing proof of occupancy (PoA / rent receipt / registered lease).

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 **All HC**

Owner consent mandatory for new connection clause 4.4 1 case

A new connection to an occupier/tenant requires the owner's consent under Clause 4.4(a)(vi); absent that consent no mandamus to connect can issue.

SCJ-236 · Iftakhar Ahsan 2014 **All HC**

Supply code not confined to s.50 subjects s.181 rulemaking 1 case

The Supply Code is regulation-making under s.181 (and s.86(1) 'supply'), not limited to the subjects listed in s.50; fiscal/protective provisions are within power.

SCJ-255 · Suvidha Engineers India Ltd. 2009 **All HC**

Writ court defers to supply code adjudicatory mechanism 1 case

Reinforces that challenges to Supply Code assessments should ordinarily proceed through the Code's own adjudicatory mechanism rather than direct writ adjudication on the merits, with interim reconnection conditioned on partial deposit — a recurring pattern in this corpus's disconnection/reconnection interim-relief cluster.

SCJ-143 · Vimal Gupta 2017 **All HC**

C. Arrears & Transferee Liability

12 PRINCIPLES · 28 CASE-APPLICATIONS

Arrears run with the premises 13 cases

The foundational SC statement of the doctrine underlying this corpus's arrears/transferee-liability cluster (K.C. Ninan/SCJ-037 line, and later applied/qualified in SCJ-054, SCJ-063, SCJ-090, SCJ-098): dues are not a charge on the property in the absence of a stipulation, but a distributor may lawfully condition supply/reconnection on...

SCJ-099 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2008 **SC**

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

SCJ-063 · M/S Rayana Paper Board Industries Ltd. 2010 **All HC**

SCJ-031 · Haryana State Electricity Board 2010 **SC**

SCJ-012 · Chandra Prakash Gupta 2014 **All HC**

SCJ-229 · Soni Dwivedi 2016 **All HC**

SCJ-036 · Jitendra Kumar Gupta & Anr. 2017 **All HC**

SCJ-248 · Kalawati Rana 2017 **All HC**

SCJ-098 · Palika Towns LLP 2022 **All HC**

SCJ-037 · K.C. Ninan 2023 **SC**

SCJ-005 · Amir Ahmad 2025 **All HC**

SCJ-054 · M/S Dharti Agro Industries Pvt. Ltd. 2025 **All HC**

SCJ-199 · Teena Sehgal 2026 **All HC**

Arrears follow premises not person fresh connection vs transfer 4 cases

Past dues are not a charge on premises and cannot be foisted on a mere transferee, but a distributor may stipulate clearance of arrears as a condition of a fresh connection or load enhancement to the same premises.

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

SCJ-127 · Special Officer, Commerce, North East... 2012 **SC**

SCJ-229 · Soni Dwivedi 2016 **All HC**

SCJ-248 · Kalawati Rana 2017 **All HC**

Connection transfer requires clearance of arrears clause 4.44 2 cases

A connection is transferred/mutated to a new holder under Clause 4.44 only after all arrears are cleared and formalities completed, by the Executive Engineer of the Division.

SCJ-196 · Ganga Dayal 2014 All HC

SCJ-174 · Meva Ram 2014 All HC

Arrears apportioned pro rata on subdivision 1 case

On a legal sub-division of a premises, outstanding electricity dues are divided pro-rata; a purchaser of a portion is liable only for that portion's share.

SCJ-007 · Anubhav Jaiswal 2014 All HC

Arrears bar is premises specific 1 case

The bar on a new connection for arrears attaches only to the specific premises in default, not to other portions of a building.

SCJ-006 · Anand Kumar 2023 All HC

Arrears follow premises not person ada allotment context 1 case

Extends the DVS Steels/Hanuman Rice Mills arrears-transferee-liability doctrine (SCJ-099) from private-sale/purchase contexts to a statutory development-authority (ADA) EWS-flat allotment, holding the two contexts are not meaningfully distinguishable; part of this corpus's broader arrears/occupant-liability cluster (SCJ-090, SCJ-098,...

SCJ-125 · Pawan Jha @ Priya Jha 2011 All HC

Charge follows actual use 1 case

Liability for system-upgradation (the system-loading charge) accrues only on actual consumption; a prospective consumer who never draws supply bears no share of it.

SCJ-002 · Suman Engineering and Chemicals Pvt. L... 2023 All HC

Clause 4.3 f vi landlord co extensive liability for tenant dues 1 case

A landlord's liability for a departed tenant's electricity dues is co-extensive under Clause 4.3(f)(vi), triggered once the connection was given with the landlord's consent (which a tenancy-agreement clause can itself evidence); this reinforces and extends this corpus's arrears/occupant-liability cluster (SCJ-090, SCJ-098) into the...

SCJ-124 · Beena Dubey 2017 All HC

Clause 4.3f director liability not retrospective and requires exhaustion of company assets 1 case

Establishes that Clause 4.3(f)'s director-liability regime (first-charge-on-company-assets, then directors only if insufficient) does not apply retrospectively to dues/citations predating the 2005 Supply Code, and requires the licensee to first exhaust recovery against company assets before reaching directors personally — a limiting...

SCJ-129 · Piyush Kumar 2012 All HC

Director liability for company dues subordinate to company assets 1 case

Recovery from directors under Clause 4.3(f)(v) is sequenced after recovery against the company's assets and, pending challenge, abides the outcome of the lead writ petitions.

SCJ-245 · Mukesh Kumar and 3 Others 2017 All HC

Lifting corporate veil to fix arrears liability 1 case

Where a common controlling person uses a web of firms/companies and acquisitions to escape recovery, the veil may be lifted to hold the applicant entity liable for the defaulter's arrears as a condition of supply.

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

Prior judicial admission of alias bars mistaken identity defence 1 case

A consumer's own prior judicial admission (in a separate proceeding) that a disputed name is his alias precludes a later mistaken-identity defence against a recovery citation issued in that name — an evidentiary/estoppel point in the theft-recovery enforcement context.

SCJ-144 · Vinay Kumar Singh 2020 **All HC**

D. Insolvency Interface (IBC)

6 PRINCIPLES · 10 CASE-APPLICATIONS

Ibc s.238 overrides sector statutes 3 cases

Section 238 of the IBC, being a later special enactment with a non-obstante clause, overrides sectoral statutes with their own non-obstante/first-charge provisions (Electricity Act ss.173-174; also applied to the Customs Act and the Tea Act in other SC rulings) once liquidation/moratorium proceedings are triggered and the sectoral...

SCJ-054 · M/S Dharti Agro Industries Pvt. Ltd. 2025 **All HC**

SCJ-157 · South East U.P. Power Transmission Com... 2026 **All HC**

SCJ-160 · Reliance Projects and Property Managem... 2026 **All HC**

Electricity dues not automatically a secured interest 2 cases

An electricity supplier's dues in a winding up do not rank *pari passu* with workmen and secured creditors under ss.529/529-A; only post-winding-up, court-ordered supply is recoverable — and only as a liquidation expense under s.457, not as a secured debt.

SCJ-152 · U.P. State Cement Corporation Ltd. (In... 2007 **All HC**

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 **SC**

Resolution plan extinguishes pre cirp electricity dues clean slate 2 cases

Electricity dues for the pre-CIRP period, not claimed during CIRP and not in the approved resolution plan, stand extinguished under s.31 IBC; the resolved entity takes over on a clean slate and statutory recovery cannot revive them.

SCJ-157 · South East U.P. Power Transmission Com... 2026 **All HC**

SCJ-160 · Reliance Projects and Property Managem... 2026 **All HC**

Ibc liability crystallises at resolution plan effective date 1 case

The resolved debtor's liability crystallises from the plan's 'effective date' (actual transition of control), not the mere date of NCLT approval, especially where implementation was delayed by litigation; time excluded in litigation benefits the debtor, not the statutory creditors.

SCJ-160 · Reliance Projects and Property Managem... 2026 **All HC**

Ibc moratorium does not cover personal guarantor directors 1 case

The s.14 IBC moratorium and a resolution plan's discharge of the Corporate Debtor do not extinguish a Director's independent personal-guarantor liability for the company's electricity dues under Clause 4.3(f)(v)/6.15 of the Supply Code — a distinct sub-doctrine within this corpus's IBC/electricity-arrears cluster (cf. SCJ-054 Dharti...

SCJ-090 · Narendra Singh Panwar 2023 **All HC**

Ibc s.238 overrides electricity act recovery mechanism in liquidation 1 case

Once liquidation commences, IBC s.238 overrides the Electricity Act's ss.173/174 non-obstante recovery provisions and the Supply Code's Clause 4.3/6.15 mechanism; a licensee cannot independently attach/auction a corporate debtor's assets for electricity dues outside the IBC's collective process — directly confirms and elevates to...

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 **SC**

E. Premises, Site, Estimates & Feeders

13 PRINCIPLES · 16 CASE-APPLICATIONS

Clause 4.5d landowner objection to supply line 3 cases

Companion application of the same principle as SCJ-104 (Priy Shankar Pandey v. State of U.P.).

SCJ-120 · Shivmahraj 2024 **All HC**

SCJ-104 · Priy Shankar Pandey 2024 **All HC**

SCJ-169 · Abhimanyu Singh 2026 **All HC**

Independent feeder original consumer consent 2 cases

The Clause 3.4 protection (consent of the original consumer before tapping) attaches only to a genuine independent feeder; it does not arise for a small consumer supplied through ordinary lines/transformer.

SCJ-244 · Raj Narayan Singh 2013 **All HC**

SCJ-067 · M/S Shri Parasnath Alloys (Pvt.) Ltd. 2013 **All HC**

Change of site of sanctioned load not permitted 4.8(d) 1 case

Extending a sanctioned connection to a different/enlarged site is a change of site barred by Clause 4.8(d)(i), not an internal change under Clause 4.45(c); a fresh connection must be sought.

SCJ-230 · KPB Metals Private Limited 2022 **All HC**

Clause 3.4a independent feeder list is restrictive not illustrative 1 case

Clause 3.4(a)'s enumerated heavy-industry categories requiring mandatory independent-feeder supply are specific and restrictive, not illustrative; other consumers (even at higher loads) have only the Clause 3.4(b) option, not obligation, to seek an independent feeder — directly informs how 'Independent Feeder' provisions are to be...

SCJ-101 · Pawan Kumar Agarwal s/o M.P. Agarwal 2007 **All HC**

Clause 3.4d tapping exception where independent feeder infeasible 1 case

Clause 3.4(d) allows tapping of an existing feeder for a similar-process consumer where an independent feeder cannot be constructed; a licensee cannot insist on 3.4(a) while ignoring the 3.4(d) exception.

SCJ-260 · Purvanchal Vidyut Vitran Nigam Ltd., B... 2008 **All HC**

Clause 9.3 service mode prerequisite to treating assessment final 1 case

A provisional assessment cannot be treated as final for want of objections unless the licensee can establish it was served in the manner Clause 9.3 prescribes; failure to do so, especially where the consumer denies receipt, deprives the consumer of the s.126(3)/Clause 8.1(b)(iii) objection right and vitiates a subsequent recovery...

SCJ-119 · Shiv Shankar Giri 2011 **All HC**

Estimate departmental delay cannot shift feeder or force fresh estimate 1 case

A sanctioned, fully-paid estimate must be honoured; the department's delay cannot be used to move the consumer to a costlier feeder or demand a fresh estimate (Clause 4.6(a)/(g)).

SCJ-258 · Executive Engineer, Electricity Urban ... 2010 All HC

Independent feeder tapping not shared substation determines status 1 case

A feeder remains 'independent' notwithstanding other consumers being fed from other feeders off the same sub-station; it loses independence only if another consumer is tapped onto the very same feeder — the operative test for 'Independent Feeder' both under this pre-Code tariff interpretation and, by extension, informing how the term...

SCJ-094 · Northern Coalfield Ltd. 2005 All HC

Licensee performs installation consumer cannot self supply 1 case

Installation of new-connection infrastructure (within 500 m) is done by the licensee, whose estimate under Clause 4.6 includes laying-line/mains/material charges; the consumer pays but cannot insist on supplying/installing the equipment himself.

SCJ-201 · Madhu Rani Agrawal 2014 All HC

Owner objection to supply requires dm permission rule 3b 1 case

Where an owner objects to a licensee laying/supplying over his premises, the licensee must obtain the DM's/Commissioner's permission under the proviso to Rule 3(b) of the Works of Licensees Rules, 2006; a connection cannot be forced over the objection without it.

SCJ-222 · Daya Nand Sharma 2022 All HC

Premises definition scope of recovery 1 case

The Supply Code's 'premises' definition (area/portion sanctioned to a single consumer) bounds the scope of recovery/sealing against a defaulting consumer; disputes about whether a third party's distinct premises were wrongly included are fact-specific and go to the recovery authority (Collector), not the writ court.

SCJ-052 · M/S Birla Aircon 2012 All HC

Premises is area for which connection sanctioned clause 2.2(ss) 1 case

'Premises' is the specific area/khasra for which a single consumer's connection was applied for or sanctioned; later-acquired contiguous plots are not part of it merely by adjacency.

SCJ-230 · KPB Metals Private Limited 2022 All HC

Tapping allowed if feasible and original supply unaffected 1 case

Even absent a right to object, tapping is permissible only where technically feasible and the licensee records that the original consumer's supply is not affected.

SCJ-244 · Raj Narayan Singh 2013 All HC

F. Security, Load, Tariff & Regulatory Economics

24 PRINCIPLES · 26 CASE-APPLICATIONS

Additional security is not dues clause 4.49 not attracted 2 cases

Additional security is not a recoverable 'due'; Clause 4.49 (stay-of-recovery-of-dues) is not attracted and no bank guarantee for additional security can be demanded.

SCJ-252 · Tehri Girders Limited and another 2009 All HC

SCJ-250 · Barnala Steel Industries Ltd. 2013 All HC

Sick unit protective treatment 2 cases

A loss-making unit notified as a 'Relief Undertaking' cannot be burdened with billing at the pre-reduction load after production has halted; the relief declaration binds the licensee.

SCJ-246 · L.M.L. Ltd. 2009 All HC

SCJ-038 · Kanpur Electricity Supply Co. Ltd. & A... 2010 SC

Charge requires consumer option 1 case

A tariff charge conditioned on the consumer opting for a facility (here, protective load) cannot be levied absent that option and the licensee's sanction; it cannot be imposed suo motu on an audit objection.

SCJ-026 · Executive Engineer, Electricity Urban ... 2014 All HC

Charitable institution free or subsidised service tariff lmv 4a 1 case

A charitable institution providing service free or at Government-rate charges is billed under LMV-4(A), not LMV-4(B).

SCJ-261 · Kanpur Electricity Supply Co. Ltd. and... 2011 All HC

Clause 4.49 intra vires protective not recovery 1 case

Clause 4.49 is a valid protective provision (bank guarantee for a stayed amount as a condition of load enhancement), not a recovery mechanism, and is intra vires the Act.

SCJ-255 · Suvidha Engineers India Ltd. 2009 All HC

Commission alone determines tariff overrides contract 1 case

Once the regulatory commission is constituted, the statutory power to determine tariff/power-purchase price displaces the price mechanism agreed between the parties, even where the agreement is otherwise statutorily protected.

SCJ-156 · Noida Power Company Ltd. 2005 All HC

Cross subsidisation of franchisee input rate not per se unlawful 1 case

Cross-subsidisation of a franchisee's below-bulk-supply input rate by a licensee's other-area consumers is a legitimate feature of input-based franchisee models addressing high-loss areas, and is not by itself a ground to invalidate the arrangement absent evidence of illegality or misrepresentation.

SCJ-136 · Torrent Power Limited 2025 SC

Franchisee is agent of licensee not directly regulable 1 case

Establishes that a distribution franchisee under s.2(27)/seventh proviso to s.14 is the licensee's agent, insulated from direct ERC regulatory oversight; an ERC's s.128 investigation power reaches only the licensee, requiring a concrete showing of licence/Act non-compliance rather than a bare performance review — a significant...

SCJ-136 · Torrent Power Limited 2025 SC

Interim restoration on security pending fresh assessment 1 case

Where a defective assessment is set aside for procedural non-compliance, the Court may order interim restoration of supply on the consumer furnishing security, subject to the outcome of a properly conducted fresh assessment.

SCJ-087 · Mrs Rajendra Kumar Sharma 2024 **All HC**

Legal profession not commercial activity for tariff 1 case

Establishes that the legal profession, being a professional (not commercial) activity, cannot be billed under the non-domestic/commercial LMV-2 tariff merely because the current rate schedule lacks an express 'lawyers' chambers' category and a residuary clause would otherwise sweep it into LMV-2 — an important tariff-classification...

SCJ-133 · Tehsil Bar Association, Sadar Tehsil P... 2023 **All HC**

Licensee cannot alter commission determined tariff 1 case

Tariff is set by the regulatory commission; a distribution licensee has no power to alter it by executive circular, and a purported alteration not following the statutory procedure is void ab initio.

SCJ-155 · Saini Alloys Pvt. Ltd. 2006 **All HC**

Licensee circular cannot override commission tariff order 1 case

A licensee's own circular/notification cannot alter or vary a tariff duly approved by the Regulatory Commission; in case of inconsistency, the Commission-approved tariff order prevails.

SCJ-094 · Northern Coalfield Ltd. 2005 **All HC**

Protective condition on load enhancement does not override court stay 1 case

A bank-guarantee condition that operates only because the consumer voluntarily sought enhanced load does not nullify or override the court's stay of the underlying assessment.

SCJ-255 · Suvidha Engineers India Ltd. 2009 **All HC**

Reasonable return via sixth schedule reverse application 1 case

A licensee is entitled to a reasonable return; where the purchase price is disputed, reverse application of the Sixth Schedule principles is an appropriate method of determining the rate.

SCJ-156 · Noida Power Company Ltd. 2005 **All HC**

Regulator cannot change rules at truing up 1 case

A Regulator cannot, at the truing-up stage, change the methodology or principles of the initial tariff determination; doing so is an impermissible retrospective revision of a quasi-judicial tariff order.

SCJ-010 · BSES Rajdhani Power Ltd. 2022 **SC**

Relief undertaking notification stays recovery 1 case

A notification under ss.3-4 of the 1966 Act suspends pre-notification liabilities and stays their enforcement, satisfying the stay condition of Clause 4.49.

SCJ-246 · L.M.L. Ltd. 2009 **All HC**

S.56 2 two year bar not retrospective to pre 2003 act liabilities 1 case

The s.56(2)/Clause 6.15 two-year recovery-limitation bar applies only prospectively to post-2003-Act liabilities; pre-2003-Act liabilities remain governed by s.24 of the 1910 Act (no limitation on demand/recovery power) via s.6 of the General Clauses Act — an important temporal-scope qualification on the recovery-limitation doctrine...

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 All HC

Security cheque matures on accrual of underlying debt 1 case

Establishes that a 'security' cheque issued at the outset of a Power Supply Agreement matures into an instrument for a legally enforceable debt once electricity is actually supplied and billed and payment defaults, distinguishing Indus Airways (no debt ever arose) and aligning with the Sampelly/Sripati Singh line — a significant...

SCJ-132 · Sunil Todi & Ors. 2021 SC

Security deposit is advance payment not debt 1 case

A security/additional-security deposit is an advance payment (depositor-depositee), not a debt owed to the licensee, and is not recoverable as arrears of land revenue.

SCJ-252 · Tehri Girders Limited and another 2009 All HC

Security vs debt characterisation is a triable defence 1 case

Whether a cheque was truly non-presentable security or secured an existing/maturing liability is a disputed question of fact for trial, not resolvable in a s.482 Cr.P.C. quashing petition.

SCJ-132 · Sunil Todi & Ors. 2021 SC

Tariff no retrospective effect 1 case

A revised tariff takes effect only from seven days after its publication (Clause 3.8 of the Supply Code / s.24(7) Reforms Act / Regulation 139); it cannot be applied retrospectively to an earlier date, following Binani Zinc's presumption against retrospective statutory/regulatory effect.

SCJ-066 · M/S Shokumbhari Pulp & Paper Mills Ltd. 2014 All HC

Temporary supply classified by purpose not duration 1 case

Supply for construction/civil work is 'temporary' under LMV-9 Part C by reason of its purpose and defined period, not its load or how long it actually ran; it attracts the appropriate schedule's rate plus 25%.

SCJ-166 · Hyundai Engineering and Construction C... 2013 All HC

Unilateral acceptance of successor code estops challenge to predecessor 1 case

A party that unilaterally accepts a charge/obligation under a successor Supply Code cannot consistently dispute an analogous charge under the code's statutory predecessor for the same underlying reasons.

SCJ-137 · U.P. Avas Evam Vikas Parishad & Anr. 2011 SC

Withdrawn load factor rebate is a recoverable due 1 case

A load-factor rebate given in the bill and later withdrawn becomes a 'due', so a bank-guarantee demand for that amount is permissible (unlike additional security).

SCJ-252 · Tehri Girders Limited and another 2009 All HC

G. Metering

20 PRINCIPLES · 25 CASE-APPLICATIONS

Meter manufacturer testing not independent 3 cases

Testing of a disputed meter by its own manufacturer (e.g. Secure Meters Ltd.) does not satisfy the Code's requirement of testing at an 'independent laboratory'; such testing is inherently biased and cannot be relied upon to sustain an unauthorised-use assessment. Followed by later cases (see also SCJ-051 line applying the same...

SCJ-059 · M/S Modern Rice Mill 2011 All HC

SCJ-071 · M/S Venus Stone Crushing Co. & Anr. 2012 All HC

SCJ-161 · Rituraj 2017 All HC

Clause 5.6d meter testing procedure mandatory for theft finding 2 cases

A theft finding premised on a defective/tampered meter requires compliance with Clause 5.6(d)'s testing procedure (notice, opportunity to be present, consumer's right to dispute per 5.6(c)); non-compliance (no MRI, no proper laboratory testing) undermines the evidentiary basis for both the assessment and any criminal prosecution.

SCJ-114 · Saurabh Agrawal & Another 2017 All HC

SCJ-161 · Rituraj 2017 All HC

Meter dispute must exhaust clause 5.6 before writ 2 cases

Where a billing dispute turns on the accuracy of a meter/transformer reading, the consumer must first invoke the Clause 5.6 testing procedure (and thereafter the Electrical Inspector) rather than approach the writ court directly; the writ challenge is premature until that statutory route is exhausted.

SCJ-083 · Mohamdabad Cold Storage Private Ltd. (... 2007 All HC

SCJ-086 · Mother India Refrigeration Industries ... 2007 All HC

Meter testing venue option must be offered before sealing 2 cases

Before a sealed meter is tested, the licensee must give the consumer a clear (bold-capitals) notice of the right to choose the testing venue — licensee's lab, an approved independent agency, or the electrical inspector; omitting it makes the testing illegal.

SCJ-162 · Amrawati Devi 2009 All HC

SCJ-161 · Rituraj 2017 All HC

Check meter and substation readings relevant to theft assessment 1 case

In a theft/UUE assessment, the reading of an outdoor check meter (found O.K.) and of the sub-station accounting meter (line-loss records tallying at both ends) are relevant factors the assessing officer must consider before concluding theft.

SCJ-164 · Parmarth Steels & Alloys (Pvt.) Ltd. &... 2013 All HC

Check meter procedure on consumer request 1 case

The Clause 5.6 check-meter/testing procedure for a disputed meter is triggered only by the consumer's request; a consumer who has knowledge of a slow-meter finding and does not dispute it or seek testing cannot later invoke Clause 5.6 non-compliance to challenge the consequential bill.

SCJ-058 · M/S Krown Bakers India Pvt. Ltd. 2014 All HC

Clause 5.6 meter testing required before missing meter assessment 1 case

Reinforces this corpus's Clause 5.6 line (Smt. Amrawati Devi, Modern Rice Mill) requiring meter testing/verification before an assessment premised on a missing or defective meter is finalised.

SCJ-126 · Vimla Tiwari 2012 All HC

Defective meter not per se theft distinct assessment regime 1 case

A defective meter, absent a finding that the consumer rendered it defective, is not per se theft/UUE under s.126 and is governed by the distinct defective-meter rules (Clauses 5.6/5.8), not the s.126 route.

SCJ-189 · Krishna Kumar Bhargava 2014 All HC

Impossibility exception outside meter billing 1 case

Where the consumer's own meter cannot yield a reading due to physical impossibility (fire, theft), a reliably maintained outside/check meter may exceptionally found billing, applying the impossibility maxims.

SCJ-060 · M/S Mohit Paper Mills Ltd. & Anr. 2011 All HC

Independent lab testing only if conclusion rests on test report 1 case

Clause 5.6(c)(iii)'s independent-laboratory option is triggered only when the tampering/defect finding is derived from a test report; it has no application where tampering is visibly patent at inspection, distinguishing Mohd. Sagir and Amrawati Devi (ambiguous, test-report-dependent tampering).

SCJ-064 · M/S Santosh Preservation Pvt. Ltd. & A... 2023 All HC

Mandatory pretesting notice final by slp dismissal 1 case

The mandatory seven-day pre-testing notice requirement (Amrawati Devi) is now final law, the Supreme Court having dismissed the SLP against it; non-compliance renders the test report unusable.

SCJ-071 · M/S Venus Stone Crushing Co. & Anr. 2012 All HC

Meter correctness dispute referred to electrical inspector 1 case

Absent any allegation of theft or tampering, a dispute about whether a meter records correctly must be decided by the Electrical Inspector (s.26(6) IEA 1910), who alone may estimate consumption and fix the amount; the licensee cannot self-assess. The 2003 regime carries a parallel scheme (Code 2005, Clauses 5-6).

SCJ-167 · U.P. Rajya Vidyut Parishad 2015 All HC

Meter reading dispute clause 6.5 1 case

A disputed/implausible meter reading is to be resolved by a Clause 6.5 representation before the licensee, decided by a speaking order after inspection of the meter, rather than by the writ court on merits.

SCJ-046 · Lala Ram Batham 2012 All HC

Meter removed without objection loses right to dispute 1 case

A consumer who allows the meter to be removed/replaced without raising a s.26(6) dispute loses the material evidence and cannot later dispute past bills on meter-correctness grounds.

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 All HC

No billing on basis of check meter 1 case

A bill/demand cannot be raised on the basis of a check meter, there being no such provision in the Code or the Act.

SCJ-202 · Gautam Motors Pvt. Ltd. 2016 All HC

Prepayment meter exemption conditional on availability 1 case

The s.47(5)/Clause 4.20(l) security exemption for consumers willing to take supply through a prepayment meter operates only once such meters are actually available for that consumer category; unavailability (as for HT consumers) leaves the licensee's ordinary power to demand security under s.47(1)-(4) intact. Followed and agreed with...

SCJ-053 · M/S Dev Prayag Paper Mill (Pvt.) & Ors. 2017 **All HC**

S.26 6 confined to meter correctness not bill disputes 1 case

The Electrical Inspector's s.26(6) jurisdiction is limited to a live meter-correctness dispute; it does not extend to disputes over bills or to theft/fraud/tampering assessments.

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 **All HC**

S.26 6 inapplicable to fraud tampering disputes 1 case

Confirms the well-settled distinction (M.P. Electricity Board v. Basantibai; Rupa Ice Factory; Sub-Divisional Officer (P), UHBVNL v. Dharam Pal) that s.26(6) of the 1910 Act, confined to genuine meter-correctness disputes referable to an Electrical Inspector, has no application to fraud/tampering allegations, which are instead...

SCJ-151 · Western Electricity Supply Co. of Oris... 2014 **SC**

Slow meter difference only three months clause 5.6cii 1 case

Under Clause 5.6(c)(ii) the difference for a slow/defective meter is chargeable only for the previous three months, and testing must be in the consumer's presence with an opportunity to object; a multi-year slow-meter demand cannot stand.

SCJ-203 · Madhuvan Properties (P) Ltd. 2016 **All HC**

Slow metering assessment inconsistent with parallel theft prosecution 1 case

Where a licensee itself assesses and fully recovers disputed consumption as slow-metering charges under Clause 5.6(c)(ii) (a civil, non-theft remedy), and a s.127 appellate authority conclusively finds s.135 inapplicable on the same facts, a parallel/continuing s.135 theft prosecution on the identical inspection report is an abuse of...

SCJ-114 · Saurabh Agrawal & Another 2017 **All HC**

H. Billing, Recovery, Limitation & Disconnection

32 PRINCIPLES · 46 CASE-APPLICATIONS

Billing objection to executive engineer under 6.5 7 cases

A grossly-inflated-bill grievance is to be pursued through the Clause 6.5(b) pay-under-protest-and-complain mechanism, with recovery stayed pending decision.

SCJ-241 · Gul Mohammad 2013 **All HC**

SCJ-254 · Chandrapal 2014 **All HC**

SCJ-253 · Mohammad Khalid 2014 **All HC**

SCJ-238 · Mamata Verma 2017 **All HC**

SCJ-226 · Shree Radhey Ice Factory 2018 **All HC**

SCJ-237 · Buddhesh Patel 2018 **All HC**

SCJ-234 · Shashi Bhushan Singh 2023 **All HC**

Clause 6.15 two year bar mandatory licensee duty to act 4 cases

Arrears (here a peak-hour penalty) cannot be recovered after two years from when they first became due (s.56(2)/Clause 6.15); recovery beyond two years requires a reasoned order adverting to the bar.

SCJ-218 · Paliwal Alloys (Pvt.) Ltd. 2009 **All HC**

SCJ-113 · Satya Narayan 2013 **All HC**

SCJ-214 · Muneshwar Prasad Baranwal 2018 **All HC**

SCJ-263 · Zaz Leather Complex Pvt. Ltd. 2023 **All HC**

Instalment facility clause 6.14 for financial distress 4 cases

Instalments for electricity dues are a discretionary facility under Clause 6.14, confined to consumers in financial distress, granted only by an Executive Engineer or above within the prescribed tiers, with no surcharge waiver and a minimum 40% first instalment.

SCJ-182 · Mohammad Waseem 2012 All HC

SCJ-251 · Usha Devi 2014 All HC

SCJ-216 · Sultan Khan 2017 All HC

SCJ-232 · Udayveer Singh 2018 All HC

Disconnection not for landlord tenant dispute 3 cases

A tenant in possession is not to be deprived of electric supply on account of a landlord-tenant dispute; supply is restored (here by civil injunction pending the suit).

SCJ-018 · Dipali Dey (Baxi) 2009 SC

SCJ-016 · Devendra Sharma 2011 All HC

SCJ-020 · Divya Sahani 2021 All HC

Billing must follow actual meter reading 1 case

Metered consumption must be billed on actual meter readings; a licensee's supplementary/amended bill raised later on a presumed/average basis (e.g. suspected faulty meter) is not lawful absent due process — resonates with the Clause 5.6/5.9 defective-meter procedure line already established in this corpus (e.g. SCJ-058, SCJ-059, SCJ-071).

SCJ-076 · Maharashtra Electricity Regulatory Com... 2007 SC

Clause 6.12 governs bill payment appropriation not duty refund 1 case

Clause 6.12's order of application applies to appropriating a consumer's bill payment, not to adjusting duty/amounts already realised from the consumer.

SCJ-204 · Shri Radhey Iron (Pvt.) Ltd. 2013 All HC

Clause 6.5 objection must be in proper form 1 case

A billing objection triggers the licensee's duty to decide it only if it conforms to Clause 6.5 (particulars of amount deposited and the specific objection to the bill); a non-conforming representation need not be decided.

SCJ-187 · Mukesh Singh Chaturvedi 2014 All HC

Clause 6.5b quantification dispute 1 case

A dispute solely over quantification of a demand is relegated to the Clause 6.5B authority for a reasoned determination, rather than being adjudicated in writ jurisdiction.

SCJ-075 · Madarsa Dargah Aaliya Islamiya Shareef... 2023 All HC

Disconnection barred but recovery not 1 case

The two-year bar in s.56(2) restricts only the coercive remedy of disconnection; the licensee may still raise a supplementary demand and pursue other modes of recovery (including within limitation from discovery of a mistake).

SCJ-009 · Assistant Engineer (D1), Ajmer Vidyut ... 2020 SC

Excess duty realised must be adjusted against current bill 1 case

Electricity duty realised during an exemption period is an excess recovery that must be adjusted against the consumer's current bill; the licensee cannot defer the adjustment or disconnect for a bill covered by the amount already held.

SCJ-204 · Shri Radhey Iron (Pvt.) Ltd. 2013 All HC

First due on billing not consumption 1 case

Electricity charges become 'first due' when the bill is issued quantifying them, though liability to pay arises on consumption; the limitation clock under s.56(2) starts from billing.

SCJ-009 · Assistant Engineer (D1), Ajmer Vidyut ... 2020 SC

Fresh bill distinguished from supplementary bill for s.56(2) 1 case

The relaxation for a supplementary bill (limitation running from discovery of a bona fide mistake) does not extend to a fresh bill for over two years; Clause 6.15 was not addressed in the Ajmer Vidyut line.

SCJ-263 · Zaz Leather Complex Pvt. Ltd. 2023 All HC

Fresh recovery arbitrary while representation pending 1 case

Issuing a fresh demand / recovery notice while a Clause 6.5 representation remains undecided is arbitrary; the representation must be decided first and recovery kept in abeyance.

SCJ-254 · Chandrapal 2014 All HC

Government shareholding does not make licensee dues government dues 1 case

A distribution licensee's dues do not automatically rank as 'government dues' under s.53(1)(e)/(f) IBC merely because of state shareholding in the licensee; the licensee remains a distinct juristic entity in a liberalised, privately-contestable sector.

SCJ-100 · Paschimanchal Vidyut Vitran Nigam Ltd. 2023 SC

Installment payment clause 6.14 1 case

A consumer unable to pay an outstanding bill in one go may apply under Clause 6.14 of the Supply Code for installment payment; the Executive Engineer must consider and decide such an application expeditiously.

SCJ-045 · Kripa Shanker 2025 All HC

Interest corollary of retention 1 case

Interest on a sum wrongfully retained/evaded (e.g. under Clause 8.1 of the Supply Code) is compensatory, not penal or confiscatory.

SCJ-055 · M/S Hind Industries Limited 2011 All HC

Licensee bears burden of proving retained charges 1 case

Deposits taken as part of the estimate are refundable unless the licensee proves the actual expenditure reasonably incurred; unproved heads must be refunded.

SCJ-002 · Suman Engineering and Chemicals Pvt. L... 2023 All HC

Lps not leviable absent consumer default 1 case

Late payment surcharge under Clause 6.7 / the rate schedule cannot be charged where the payer was not a defaulter — here an Official Liquidator with no funds until realisation of assets, supplying under court order; actual bills admitted, surcharge disallowed.

SCJ-152 · U.P. State Cement Corporation Ltd. (In... 2007 All HC

Minimum charges only if consumer at fault 1 case

Minimum consumption/guarantee charges for a disconnection period are chargeable only if the disconnection is attributable to the consumer's own fault; a licensee-caused or unresolved-fault disconnection cannot ground such a demand.

SCJ-059 · M/S Modern Rice Mill 2011 All HC

No charge when supply fails by licensee fault 1 case

Minimum-guarantee (and like) charges cannot be levied for a period in which supply failed for a reason attributable to the licensee; the obligation to pay is tied to the licensee's maintaining the minimum standard of supply.

SCJ-030 · Harihar Cold Storage 2011 **All HC**

No free consumption disconnection for non payment 1 case

A consumer who consumed electricity must clear the bills; non-payment justifies disconnection, and the absence of a raised bill is no licence for free consumption - the remedy is to resolve the billing dispute under the Code.

SCJ-221 · Shanti Devi 2016 **All HC**

No series of provisional bills without statutory basis 1 case

Provisional assessment bills cannot be issued serially in the absence of a provision in the Act or the Code; provisional billing under Clause 6.2(b) is confined to cases where the meter reading cannot be taken, and regular-bill disputes lie under Clause 6.5.

SCJ-231 · Vineet Plastics Ltd. 2014 **All HC**

Notice required before permanent disconnection 1 case

Permanent disconnection of electricity supply — even where grounded in an allegation of unauthorized use — requires prior notice/show-cause opportunity under the Supply Code; disconnection without notice is arbitrary and unauthorized, warranting reinstatement without prejudice to a subsequent lawful show-cause process.

SCJ-108 · Raju 2024 **All HC**

One time settlement finality 1 case

Acceptance of a licensee's One Time Settlement covering all pending disputes estops the consumer from later reviving any one of those disputes.

SCJ-068 · M/S Three Star Paper Mills Pvt. Ltd. 2018 **All HC**

Prescribed authority must be notified under 1958 act 1 case

An officer can exercise recovery powers as a 'prescribed authority' under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 only if notified as such; absent notification, s.3 demand notices are invalid.

SCJ-158 · Ashok Kumar & Ors. 2008 **All HC**

Recovery must be withdrawn not merely deferred on set aside 1 case

When the final assessment is set aside, the recovery/citation must be withdrawn, not merely 'kept in abeyance' or deferred; deferring it is not compliance with the order.

SCJ-154 · Arup Kumar Mitra 2014 **All HC**

Recovery objection goes to assessing authority not executing tehsildar 1 case

An objection to the correctness of an electricity demand lies before the assessing/electricity authority (or on appeal), not before the executing Tehsildar, who is confined to execution and cannot vary the demand.

SCJ-170 · Heera Lal 2009 **All HC**

S.56(2) bar does not apply to continuing regular bills 1 case

The s.56(2) limitation protects against belated first demands, not the ongoing accrued bills of a continuing consumer still being supplied; a gross defaulter who paid nothing while consuming cannot invoke it.

SCJ-198 · Mamta Devi Srivastava 2014 **All HC**

S.62 6 interest only for overcharging not delayed rebate 1 case

Section 62(6) interest is confined to genuine overcharging above the determined tariff; a rebate under the tariff order is a bill-level concession, and its delayed crediting does not attract s.62(6) interest.

SCJ-072 · M/S. Kamla Cold Storage And Ice Factory 2020 **All HC**

Sum first due means when bill actually raised 1 case

For limitation purposes, an electricity charge/penalty 'first becomes due' only when a bill/demand is actually raised (and unpaid), not from the date of the underlying default/violation — a licensee's delayed billing (for legitimate reasons, e.g. awaiting correction of an earlier erroneous waiver) does not by itself extinguish...

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 **All HC**

Voluntary payment forecloses coercion plea 1 case

A compounding/assessment amount paid without protest or contemporaneous objection cannot later be assailed as realised under coercion.

SCJ-003 · Abhinav Seva Sansthan Mahavidyalaya 2011 **All HC**

Voluntary payment under undertaking not refundable absent express direction 1 case

A consumer who voluntarily pays disputed dues as a condition for obtaining a benefit (here, a fresh connection), pursuant to its own undertaking, cannot later claim a refund based on a subsequent regulatory order that merely restrains future demands, absent an express refund direction — the payment remains refundable only per the...

SCJ-099 · Paschimanchal Vidyut Vitran Nigam Ltd.... 2008 **SC**

I. Unauthorised Use of Electricity (s.126)

27 PRINCIPLES · 50 CASE-APPLICATIONS

Opportunity before final assessment 11 cases

Clause 8.1(b) contemplates notice, hearing and a speaking final assessment in theft cases before recovery is initiated.

SCJ-239 · Tehsildar 2009 **All HC**

SCJ-172 · Suresh Kumar 2011 **All HC**

SCJ-022 · Munni Lal 2011 **All HC**

SCJ-032 · Hazi Mohd. Yaseen 2011 **All HC**

SCJ-257 · Bhajan Lal and Anr. 2011 **All HC**

SCJ-015 · Dakshinanchal Vidyut Vitran Nigam Ltd.... 2012 **All HC**

SCJ-014 · Chunni Lal Gupta 2014 **All HC**

SCJ-153 · Mohd. Sagir 2014 **All HC**

SCJ-154 · Arup Kumar Mitra 2014 **All HC**

SCJ-165 · Kamil 2016 **All HC**

SCJ-028 · Gauri Shankar Gupta 2021 **All HC**

Clause 6.8 hearing procedure mandatory before uue conclusion 6 cases

Clause 6.8's requirements — evidence of unauthorised use recorded in the report and notice, 15 working days to reply, and a personal hearing — are mandatory; a bare notice reciting that irregularities were found, with 7 days to object, is non-compliant and the assessment is illegal.

SCJ-158 · Ashok Kumar & Ors. 2008 All HC

SCJ-112 · Sanjay Rizvi 2012 All HC

SCJ-192 · Ram Prakash Yadav 2014 All HC

SCJ-193 · Yogendra Singh 2014 All HC

SCJ-165 · Kamil 2016 All HC

SCJ-176 · Rakesh 2016 All HC

126 vs 135 distinct fields 4 cases

The licensee's own election to proceed as UUE under s.126 (not theft under s.135) determines which Code powers apply; the theft-only disconnection power is unavailable.

SCJ-243 · Subhashis Chatterjee 2011 All HC

SCJ-041 · Executive Engineer, Southern Electrici... 2011 SC

SCJ-051 · M/S Beeco Electrical India & Anr. 2012 All HC

SCJ-042 · West Bengal State Electricity Distribu... 2019 SC

Assessment service must be proved else non receipt presumed 3 cases

If the licensee cannot establish the mode of service of a provisional assessment, non-receipt is presumed and the consumer is treated as denied his s.126(3)/Clause 8.1(b)(iii) opportunity of hearing; objections must then be decided afresh by a speaking order.

SCJ-177 · Mohammad Idrish 2011 All HC

SCJ-192 · Ram Prakash Yadav 2014 All HC

SCJ-193 · Yogendra Singh 2014 All HC

Uue assessment at 1.5x tariff not thrice 3 cases

Section 126(6) fixes assessment at 1.5 times the tariff; a Code provision assessing theft/UUE at three times is ultra vires and cannot be enforced.

SCJ-227 · Vijay Pal Singh & Another 2010 All HC

SCJ-228 · Vijay Pal Singh 2010 All HC

SCJ-188 · Ramveer Singh 2014 All HC

Final s.126 assessment mandatory precondition to recovery citation 2 cases

A systemic, State-wide compliance directive that no recovery citation under the 1958 Recovery of Dues Act may issue without a prior final s.126 assessment order (per Clause 6.8 of the Supply Code) following an opportunity of hearing — implemented via a compliance order from U.P. Power Corporation's Chairman & Managing Director binding...

SCJ-145 · Vinod Kumar Agarwal 2012 All HC

SCJ-176 · Rakesh 2016 All HC

Assessment final by consumer acceptance 1 case

An assessment finalised by the consumer's own written offer to pay in instalments (accepted by the licensee) cannot later be disputed as never having been finalised; his conduct amounts to acceptance/waiver of a formal final-order requirement.

SCJ-065 · M/S Sartaj Rice Mill Thru' Its Partner... 2015 All HC

Audi alteram partem for demand assessment orders 1 case

A demand/assessment order must confront the consumer with adverse material, allow objections, and be a reasoned speaking order after a hearing; a pre-printed proforma order passed in disregard of these requirements (and of prior court directions to that effect) is vitiated for breach of natural justice.

SCJ-092 · Navi Hasan 2022 All HC

Burden on licensee to prove unauthorised use 1 case

In a theft/unauthorised-use assessment the burden is on the department to prove commercial or unauthorised use; a farmer need not disprove it where his use is ancillary agricultural use within the sanctioned load.

SCJ-034 · Islam 2013 All HC

Cgrf ombudsman no jurisdiction over s.126 1 case

CGRF/Ombudsman (creatures of subordinate regulation) have no jurisdiction to review a statutory Assessing Officer's Section 126 assessment or a Section 127 appellate order; the only remedy against such an assessment is under Sections 126/127 themselves. Anchors the later Full Bench holding (SCJ-043 Kisan Cold Storage) that the...

SCJ-049 · M.D., Pakshimanthal Vidyut Vitran Niga... 2012 All HC

Civil court barred s.145 for s.126 assessment 1 case

Section 145 bars the civil court from entertaining a suit challenging a s.126 assessment; the Electricity Act is a complete Code and s.9 CPC excludes such jurisdiction.

SCJ-207 · Executive Engineer, Distribution Divis... 2017 All HC

Ex parte s.126 assessment requires hearing before recovery 1 case

A recovery certificate founded on an ex-parte provisional s.126 assessment, made without following the Supply Code's assessment/hearing procedure, cannot be coercively enforced until the consumer is given a hearing and a reasoned final assessment is passed.

SCJ-084 · Mohd Usman Ansari 2025 All HC

Excess load not unauthorised use 1 case

Excess load or appliance installation within/around the contracted load is not 'unauthorised use' under Section 126 (para 6.9 of the Code); the remedy is the tariff's additional Fixed Charge, not a theft/UUE assessment.

SCJ-039 · Kanpur Electricity Supply Co. Ltd. & A... 2011 All HC

Legal fiction carried to logical end 1 case

When the Supply Code / Section 126 deems assessed energy to be consumed, the fiction must be given full effect and the assessed units treated as sales.

SCJ-010 · BSES Rajdhani Power Ltd. 2022 SC

Malice in law vitiates s.126 assessment on fabricated report 1 case

A s.126 assessment founded on a checking report shown (through compelled personal affidavits) to be internally contradictory/fabricated is vitiated by malice in law, applying the doctrine that malice in law requires no proof of personal ill-will, only action without just cause or on a misrepresented factual basis — a significant...

SCJ-126 · Vimla Tiwari 2012 All HC

Overdrawal is unauthorised use regardless of tariff change or revenue loss 1 case

Extends and crystallises Seetaram Rice Mill's core holding: excess-load consumption is 'unauthorised use of electricity' under Explanation (b)(iv) to s.126 in every case, independent of whether it changes tariff category or causes revenue loss, because the harm targeted by s.126 is systemic (grid integrity, voltage stability) not...

SCJ-147 · Kerala State Electricity Board & Ors. 2022 SC

Proper service of provisional assessment notice clause 6.8 1 case

A Clause 6.8(b) provisional-assessment/show-cause notice must be served by an authentic mode (registered post + personal service, then newspaper publication); ordinary post does not establish service.

SCJ-257 · Bhajan Lal and Anr. 2011 **All HC**

Provisional assessment must state basis and amount 1 case

A provisional assessment must contain the calculation and the amount assessed; a document lacking these is no assessment at all, and the consumer is entitled to have objections decided by a speaking order after hearing.

SCJ-172 · Suresh Kumar 2011 **All HC**

Registered post to recorded address deemed sufficient service 1 case

Service of a demand notice by registered post to the address on the licensee's records is deemed sufficient under Explanation 1 to s.3 of the 1958 Dues Recovery Act, regardless of a bare denial of receipt.

SCJ-122 · Shyam Ferrous Ltd. Gopal Nagar 2015 **All HC**

S.126 final assessment delay requires fresh hearing 1 case

An inordinate gap between provisional and final assessment (here, over two years) requires a fresh notice/hearing before the final assessment is passed; failure to do so violates natural justice regardless of the consumer's earlier default in objecting.

SCJ-111 · Sandeep Kesarwani 2014 **All HC**

S.126 procedural strictness notice and hearing 1 case

A final assessment under s.126 must engage with the consumer's objections and record findings after a fixed hearing date, per Clauses 6.8/8.1; failure to do so vitiates the assessment and any recovery founded on it — reinforcing the procedural-strictness line already tracked in this corpus for theft/final-assessment orders (e.g....

SCJ-087 · Mrs Rajendra Kumar Sharma 2024 **All HC**

S.126 two stage hearing uue conclusion then quantum 1 case

s.126 requires a hearing at two distinct stages — before the assessing officer records the conclusion of unauthorised use (guilt), and before final assessment (quantum); the recorded conclusion of unauthorised use is the jurisdictional condition precedent to a provisional assessment.

SCJ-158 · Ashok Kumar & Ors. 2008 **All HC**

Set aside assessment is non est fresh reasoned order required 1 case

An assessment quashed by the writ court is non est; on remand the authority must pass a fresh reasoned/speaking order dealing with the objection, and cannot merely reaffirm or treat the quashed order as alive.

SCJ-154 · Arup Kumar Mitra 2014 **All HC**

Supply code regulation cannot exempt from s.126 liability ultra vires 1 case

A landmark, sharply-reasoned ultra vires ruling: a State Commission's Supply Code, being delegated legislation under s.50/s.181(2) (x), cannot create a substantive carve-out from Section 126 liability that the parent Act's self-contained assessment code does not itself provide — reinforcing and extending Anis Ahmad's holding (already...

SCJ-147 · Kerala State Electricity Board & Ors. 2022 **SC**

Tariff under s.126 6 includes both fixed and energy charges 1 case

Confirms, via s.45(3)(a)'s definition, that 'tariff' for s.126(6) purposes includes both fixed charges and energy charges, foreclosing any judicially- or regulation-created category of unauthorised-use assessment limited to fixed charges alone.

SCJ-147 · Kerala State Electricity Board & Ors. 2022 **SC**

Unauthorised connected load detected in excess of sanction is assessable 1 case

Applies Punjab SEB v. Vishwa Caliber Builders' holding that a licensee's inability to timeously release a sanctioned enhancement does not excuse a consumer's overdrawal in the interim, and that an Ombudsman/adjudicatory authority commits jurisdictional error by directing regularisation/refund of amounts properly charged for such...

SCJ-147 · Kerala State Electricity Board & Ors. 2022 **SC**

Uue period 365 days is fallback not default 1 case

The 12-month/365-day period for a UUE assessment is a fallback used only when the actual period cannot be ascertained on recorded satisfaction; where ascertainable (e.g. from the date of connection) it must be used, and the period cannot predate the connection.

SCJ-211 · Ram Bahadur 2016 **All HC**

J. Theft (s.135) & Chapter VIII of the Code

25 PRINCIPLES · 37 CASE-APPLICATIONS

S.135 arrest safeguards and compounding remedy 7 cases

For a s.135 electricity-theft offence (≤ 7 years), arrest must follow the s.41(1)(b)/41-A Cr.P.C. safeguards and cannot be mechanical; the accused may compound under the Supply Code.

SCJ-183 · Santosh Pathak 2014 **All HC**

SCJ-180 · Jalaluddin 2014 **All HC**

SCJ-185 · Kanchan Singh 2014 **All HC**

SCJ-186 · Santosh Pathak 2014 **All HC**

SCJ-184 · A.K. Dixit @ Avdhesh Kumar Dixit 2014 **All HC**

SCJ-081 · Mobin Ahamad 2015 **All HC**

SCJ-082 · Mohamad Aslam 2015 **All HC**

Clause 8.2x acquittal requires withdrawal of theft assessment 4 cases

A criminal acquittal of theft after trial obliges the licensee/appellate authority to withdraw the theft assessment and restore supply through the original meter under Clause 8.2(x)(g)-(h).

SCJ-247 · Citi Hotel 2009 **All HC**

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 **All HC**

SCJ-206 · Urmila Devi 2014 **All HC**

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam Ltd... 2015 **All HC**

Clause 8.1b personal hearing mandatory before final assessment 2 cases

After a consumer files objections to a theft-related provisional assessment, Clause 8.1(b)(iii) requires an actual personal hearing before any final assessment can be made; a bare 'final notice' reiterating the provisional figure, without a hearing or reasoned order, is unenforceable — reinforcing the corpus's cluster of s.126/Clause...

SCJ-117 · Shishir Jain 2017 **All HC**

SCJ-191 · Arvind Kumar 2018 **All HC**

Clause 8.1b theft notice natural justice 2 cases

Extends the Ashok Kumar/Clause 6.8 line: a theft assessment fails not only for skipping the prescribed procedure but also where the notice/final order misreads or mischaracterises the checking report itself (e.g. conflating a test/double meter's findings with the main meter's), since the consumer is thereby condemned on a factual...

SCJ-057 · M/S Kissan Chilling Udyog & Anr. 2014 **All HC**

SCJ-048 · Latif 2019 **All HC**

Compounding fee does not extinguish civil consumption dues 2 cases

Payment of a s.152(3) compounding fee for theft is distinct from, and does not extinguish, the consumer's separate civil liability for electricity actually consumed; recovery notices for consumption dues survive compounding — a companion principle to this corpus's theft/126 procedural-strictness line, clarifying that compounding...

SCJ-095 · Om Prakash s/o Gauri Shankar 2006 All HC

SCJ-208 · Om Prakash 2006 All HC

126 vs 135 distinct fields but 126 still applies to theft 1 case

Confirms and extends this corpus's tracked doctrine (SCJ-069 Trikoot Iron & Steels) that theft-based assessment proceeds under s.126 (never under s.135 alone), clarifying (contra a misreading of Southco v. Seetaram Rice Mill's 'different fields' language) that s.126 assessment remains mandatory even where a s.135 FIR/Special Court...

SCJ-111 · Sandeep Kesarwani 2014 All HC

Appellate authority must give reasons for disagreeing with acquittal 1 case

An appellate authority cannot dismiss the appeal without considering a final criminal acquittal or recording reasons for not agreeing with it; doing so is perverse.

SCJ-247 · Citi Hotel 2009 All HC

Clause 8.1 8.2 govern theft assessment not 6.8 1 case

Confirms and applies the specific-over-general canon (from Mohit Paper Mills) that Clauses 8.1/8.2, not Clause 6.8, govern theft-based (s.135) assessment, including the mandatory 15-working-day notice and 1.5x (not 3x) tariff multiplier.

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 All HC

Consumer forum lacks jurisdiction over s.126 s.135 140 matters 1 case

Landmark bar on Consumer Protection Act jurisdiction over Electricity Act s.126 assessment and s.135-140 theft/interference offences, distinguishing 'saving' of the CP Act's general applicability (ss.173-175) from an affirmative grant of jurisdiction over matters outside the CP Act's own 'complaint' definition — a foundational...

SCJ-139 · U.P. Power Corporation Ltd. & Ors. 2013 SC

New connection independent of undetermined theft assessment 1 case

Supply on payment of the estimate is independent of an as-yet-undetermined theft-assessment liability; the licensee cannot withhold a new connection for such an amount under Clause 4.3, but may take security for it.

SCJ-223 · Virendra Kumar Mittal 2014 All HC

No disconnection power for uue only for theft 1 case

Code Clause 8.1 disconnection applies only to theft (s.135); a UUE case (s.126) does not attract it, and a domestic connection cannot be disconnected for UUE.

SCJ-243 · Subhashis Chatterjee 2011 All HC

No recovery without final assessment clause 8.1(b) 1 case

Theft recovery cannot precede a final assessment under Clause 8.1(b); a final assessment must be made (recording service of the provisional assessment) even where the consumer files no objection.

SCJ-239 · Tehsildar 2009 All HC

Owner liable as consumer for theft regardless of tenancy claim 1 case

The s.2(15) 'consumer' definition's broad second limb (premises connected for receiving electricity) extends civil assessment liability for theft to a property owner even where an unsubstantiated tenancy is claimed, though criminal mens rea remains a separate question — an important gloss on who bears assessment liability,...

SCJ-121 · Kunwar Sarvesh Kumar Singh 2011 All HC

Owner of premises is consumer liable for theft assessment 1 case

The owner of premises falls within 'consumer' (s.2(15)) and can be subjected to a s.135 theft assessment for revenue purposes even if the premises were let out; criminal mens rea is a separate trial question.

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam Ltd... 2015 All HC

Permanent lok adalat no adjudicatory jurisdiction over theft offence 1 case

A Permanent Lok Adalat may conciliate but cannot adjudicate on merits a dispute relating to electricity theft; s.22-C(8) ousts adjudicatory jurisdiction over any offence-related dispute regardless of compoundability or whether an FIR was lodged.

SCJ-159 · Pashchimanchal Vidyut Vitran Nigam Ltd. 2018 All HC

Reasonable opportunity theft assessment 1 case

Reasonable opportunity of hearing before a theft-based Section 126 assessment is governed by Clauses 6.8(b)(i)/6.8(c)(iii)/8.1(b) of the Supply Code; substantial compliance (even via a court-directed representation) condones a procedural defect at the provisional stage.

SCJ-047 · Lalit Kumar Kapoor 2011 All HC

S.126 theft overlap requires quasi criminal procedural rigour 1 case

Because s.126 assessment often shares its factual predicate with s.135 theft and carries comparable reputational/character consequences, the same procedural rigour and honest fact-recording expected in quasi-criminal proceedings must govern s.126 assessments.

SCJ-126 · Vimla Tiwari 2012 All HC

S.135 2 authorised officer competent to lodge fir 1 case

An officer of a distribution licensee authorised under s.135(2) is competent to lodge an FIR for theft of electricity under s.135(1); this authority is not displaced by unproven allegations of malafide timing.

SCJ-102 · Pawan Kumar Laur 2011 All HC

S.138 reconnection offence distinct from billing dispute 1 case

Prosecution for unauthorised reconnection under s.138 is independent of any billing/arrears dispute under Chapter 6 of the Code; a favourable consumer-forum order on a bill does not bar the s.138 prosecution.

SCJ-173 · Shailendra Kumar 2019 All HC

Search seizure of uue gadget under clauses 4.33 4.34 1 case

The lawful response to a device used for unauthorised use is search and seizure under Clauses 4.33-4.34 (in the person's presence, with a signed seizure list), not disconnection.

SCJ-243 · Subhashis Chatterjee 2011 All HC

Surcharge vs theft penalty distinction 1 case

Where power is taken during restricted hours with (implicit or express) permission/acquiescence of the licensee, only the tariff surcharge applies; taking power surreptitiously/by theft during restricted hours instead attracts penalty under the theft provisions, not merely a surcharge.

SCJ-094 · Northern Coalfield Ltd. 2005 **All HC**

Theft assessment is under s.126 appealable s.127 1 case

Foundational clarification for the corpus: a theft-based assessment (Clause 8.1-8.3 of the Code) remains a Section 126 assessment appealable under Section 127; it is never treated as a non-appealable Section 135 order. Confirms and extends SCJ-011 (Chairman, WBSEB v. Syed Mukbul Hossain) and the Clause 6.8/8.1 line (Ashok Kumar, Mohit...

SCJ-069 · M/S Trikoot Iron & Steels Castings Ltd. 2012 **All HC**

Theft cannot rest on mere possibility 1 case

An assessment cannot be grounded merely on the 'possibility' of theft inferred from a load pattern (e.g. MRI-recorded nil night load); the assessing authority must give specific, disclosed reasons and follow the Clause 6.8 procedure, engaging with the consumer's explanation on its merits (cf. SCJ-060 Mohit Paper Mills: theft must be...

SCJ-070 · M/S Urmila Oil Industries 2019 **All HC**

Theft must be established not presumed 1 case

A theft assessment under para 8.1(b)(iv) of the Code requires cogent, disclosed evidence of unauthorised use; an unexplained late-period divergence between the billing meter and untested outside check-meters (which otherwise tracked the billing meter closely) does not suffice, and an unsupported technical suggestion at hearing cannot...

SCJ-060 · M/S Mohit Paper Mills Ltd. & Anr. 2011 **All HC**

Theft uue enforced via code 1 case

A compoundable Section 135 theft offence is to be compounded under the Electricity Supply Code, 2005 procedure; the Code supplies the enforcement / compounding machinery for theft (and, cognately, unauthorised use under Section 126).

SCJ-004 · Ajmal 2015 **All HC**

K. Fora, Jurisdiction & Appeals

20 PRINCIPLES · 30 CASE-APPLICATIONS

Clause 7.10 forum ombudsman route for billing grievances 4 cases

Billing grievances against a licensee are to be routed through the Clause 7.10 Consumer Grievance Redressal Forum (and Ombudsman on appeal), a specific licensee-grievance mechanism distinct from and preferred over the general District Consumer Forum route — reinforcing the s.42(5)/(6)-equivalent individual-grievance routing principle...

SCJ-096 · Om Prakash 2011 **All HC**

SCJ-197 · Gaya Prasad 2013 **All HC**

SCJ-217 · Veerendra Kumar Jain 2019 **All HC**

SCJ-105 · Priya Prem 2025 **All HC**

Whirlpool exceptions to alternative remedy bar 4 cases

The availability of a statutory appeal (s.127/Clause 6.8(d)) does not bar writ entertainment where natural justice is violated, the action is without jurisdiction, or fundamental rights are enforced — though on the facts here, the underlying technical/evidentiary controversy was left to be resolved through the departmental process...

SCJ-112 · Sanjay Rizvi 2012 **All HC**SCJ-163 · Jai Laxmi Cement Company Ltd. 2013 **All HC**SCJ-153 · Mohd. Sagir 2014 **All HC**SCJ-165 · Kamil 2016 **All HC****Code forum not for tortious damages** 3 cases

The Code's grievance forum (CGRF/Ombudsman) and the Act's overriding clause do not cover a claim of tortious damages for wrongful disconnection; such claims lie before the Lok Adalat / consumer fora.

SCJ-015 · Dakshinanchal Vidyut Vitran Nigam Ltd.... 2012 **All HC**SCJ-025 · Executive Engineer, Electricity Distri... 2018 **All HC**SCJ-019 · Divisional Engineer, Electricity Distr... 2018 **All HC****Ombudsman award challengeable only on s.34 arbitration grounds** 2 cases

An Electricity Ombudsman's award is akin to an arbitral award, challengeable only on grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a conciliated settlement is challengeable only for want of jurisdiction or fraud.

SCJ-260 · Purvanchal Vidyut Vitran Nigam Ltd., B... 2008 **All HC**SCJ-258 · Executive Engineer, Electricity Urban ... 2010 **All HC****Ombudsman remedy consumer only** 2 cases

Confirms, on Clause 7.10 of the Supply Code and Section 42(5)-(7), that only the consumer (not the licensee) may approach the CGRF/Ombudsman — an independent DB ruling reaching the same conclusion later confirmed by the Full Bench in Kisan Cold Storage (SCJ-043) construing the parallel UPERC Regulations, 2007 provision.

SCJ-050 · M.K. Pathak, Executive Engineer 2018 **All HC**SCJ-043 · Kisan Cold Storage & Ice Factory 2019 **All HC****Appellate authority cannot exceed limited remand** 1 case

On a limited remand, the appellate authority is confined to the remitted question and cannot reverse findings of the remanding court that have attained finality.

SCJ-179 · Paschimanchal Vidyut Vitaran Nigam Ltd... 2015 **All HC****Cgrf no jurisdiction over transmission line accident property loss** 1 case

The CGRF cannot award compensation for property loss from a transmission-line accident; its jurisdiction covers supply/billing/tariff grievances, not accident-related property damage.

SCJ-256 · Suresh Chand Bansal 2014 **All HC****Change of forum not mere procedure** 1 case

A change of forum is not a matter of pure procedure; once proceedings are validly initiated before a forum, that vested right continues despite a later change of jurisdiction, unless the legislature clearly provides otherwise.

SCJ-008 · Aruna Bhargava 2012 **All HC****Electricity ombudsman not appellate authority nor tribunal** 1 case

Establishes the Electricity Ombudsman's institutional character under s.42(6) as an ADR/quasi-judicial grievance-redressal mechanism, not an Appellate Authority or Tribunal, given the absence of finality (Regulation 12.8's 'any Court or Tribunal' access) and the absence of judicial 'trappings of a Court' — significant for...

SCJ-138 · U.P. Power Corporation Limited Thru' E... 2010 **All HC**

Individual grievance via s.42 not commission 1 case

A State Electricity Regulatory Commission cannot adjudicate individual consumers' billing grievances or issue a blanket refund direction without a proper s.128 investigation; individual grievances go through the s.42(5) Forum and s.42(6) Ombudsman.

SCJ-076 · Maharashtra Electricity Regulatory Com... 2007 **SC**

Lok adalat cannot direct action contrary to code 1 case

A Lok Adalat cannot direct the licensee to grant a connection in a manner contrary to the Act and the Supply Code.

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 **All HC**

Mixed feeder not independent feeder ombudsman cannot override code 1 case

A mixed feeder serving multiple unrelated consumers is not an 'independent feeder' under Clause 2.2(ff); an Electricity Ombudsman award directing supply via a mixed feeder in derogation of Clause 3.4(a) exceeds Regulation 11 jurisdiction and is quashed.

SCJ-123 · Sigma Castings Ltd. & Another 2013 **All HC**

No writ interference with s.127 appellate quantum 1 case

The writ court will not re-examine the quantum of a s.126 assessment that the s.127 appellate authority has considered and reduced; the consumer's remedy is to comply, not to re-litigate the amount in writ.

SCJ-205 · Mahboob Ahmad 2017 **All HC**

Not a consumer qua transmission lines s.2(72) 1 case

Transmission lines are not part of a licensee's distribution system (s.2(72)), so a person affected by a transmission-line accident is not a 'consumer' (s.2(15)) for that purpose.

SCJ-256 · Suresh Chand Bansal 2014 **All HC**

Permanent lok adalat jurisdiction over public utility electricity grievance 1 case

A Permanent Lok Adalat may entertain a consumer's grievance over refusal of an electricity connection; its jurisdiction is in addition to, not in derogation of, the Act's fora.

SCJ-249 · Dakshinanchal Vidyut Vitran Nigam Ltd. 2016 **All HC**

Recovery of assessment stayed pending s.127 appeal 1 case

Where an earlier order permitted a s.127 appeal on a part-deposit and restrained recovery pending the appeal, the licensee cannot recover the assessment while the appeal is undecided and no stay has been granted against that restraint.

SCJ-218 · Paliwal Alloys (Pvt.) Ltd. 2009 **All HC**

S.127 appellate authority must exercise independent judgment 1 case

Structural critique: a s.127 Commissioner who mechanically defers to the Superintending Engineer technical member without independent application of mind fails the statutory purpose of an appeal — a notable institutional-design observation in this corpus.

SCJ-126 · Vimla Tiwari 2012 **All HC**

Statutory forum cannot relegate to arbitration 1 case

A statutory consumer grievance forum (CGRF/Ombudsman) must decide the consumer's dispute on merits and cannot abdicate by relegating the parties to an arbitration clause; the statutory remedy is additional, by right of election, not ousted by the agreement.

SCJ-026 · Executive Engineer, Electricity Urban ... 2014 **All HC**

Third exception writ jurisdictional review on merits 1 case

Where full arguments on the underlying theft assessment have already been made and the 'without jurisdiction' exception is invoked, the Court may examine the record on merits (checking report, MRI report) to see if the assessment is patently illegal, rather than mechanically relegating to the s.127 appeal; physical/MRI indicators of...

SCJ-051 · M/S Beeco Electrical India & Anr. 2012 **All HC**

Vested right of appeal at initiation 1 case

The right of appeal is a substantive right that vests when the original (here, assessment) proceedings are initiated, governed by the law then in force, and is not taken away by a later statute unless expressly or by necessary intendment; a new pre-deposit condition cannot be imposed on such a vested appeal.

SCJ-008 · Aruna Bhargava 2012 **All HC**

L. Writ & Public-Law Doctrines

22 PRINCIPLES · 43 CASE-APPLICATIONS

Relegate to statutory remedy 16 cases

A disputed factual billing dispute is for the Clause 6.5 Executive Engineer or the Consumer Forum, not the writ court.

SCJ-213 · Awadhesh Kumar Yadav 2008 **All HC**

SCJ-011 · Chairman, West Bengal State Electricit... 2008 **SC**

SCJ-235 · Foran Singh 2011 **All HC**

SCJ-023 · Santosh Kumar Awasthi 2011 **All HC**

SCJ-242 · Gopali 2012 **All HC**

SCJ-013 · Chandrika 2013 **All HC**

SCJ-224 · Moolchand Saini 2013 **All HC**

SCJ-163 · Jai Laxmi Cement Company Ltd. 2013 **All HC**

SCJ-168 · Mohd. Daud 2013 **All HC**

SCJ-198 · Mamta Devi Srivastava 2014 **All HC**

SCJ-240 · Ishwar Chandra 2016 **All HC**

SCJ-238 · Mamata Verma 2017 **All HC**

SCJ-200 · Ram Padarath Gupta 2017 **All HC**

SCJ-195 · Bharat Bhati 2018 **All HC**

SCJ-215 · Vikas Gupta & Another 2018 **All HC**

SCJ-234 · Shashi Bhushan Singh 2023 **All HC**

Alternative remedy relegation 4 cases

The statutory appeal is the appropriate forum for a fact-heavy assessment dispute; existence of the remedy warrants declining the writ.

SCJ-242 · Gopali 2012 **All HC**

SCJ-224 · Moolchand Saini 2013 **All HC**

SCJ-040 · Kapil Gupta 2014 **All HC**

SCJ-061 · M/S Om Ice Factory Thru' Its Partner S... 2014 **All HC**

Appropriate and reprobate bars selective repudiation 2 cases

A consumer cannot both contest liability before the CGRF and seek a mandamus to pay and restore; the inconsistent, simultaneous pursuit of two remedies for the same cause is not permitted.

SCJ-181 · Amrita Arya 2018 **All HC**

SCJ-098 · Palika Towns LLP 2022 **All HC**

Hazardous activity strict duty 2 cases

A distribution company has an onerous duty to maintain its devices and to disconnect current from the sub-station in a storm; failure to do so is negligence founding a damages claim.

SCJ-025 · Executive Engineer, Electricity Distri... 2018 **All HC**

SCJ-019 · Divisional Engineer, Electricity Distr... 2018 **All HC**

Waiver requires full knowledge of right 2 cases

A consumer not informed of the Clause 5.6(c)(iii) option cannot be deemed to have waived it; waiver is an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.

SCJ-162 · Amrawati Devi 2009 All HC

SCJ-153 · Mohd. Sagir 2014 All HC

Acquiescence cuts both ways 1 case

Bars the consumer's refund of charges paid without demur and the licensee that only raised bills, never pursuing statutory recovery (s.52 noted).

SCJ-001 · Indian Oil Corporation Ltd. 2024 All HC

Alternative remedy not a bar after long pendency 1 case

A writ entertained with completed pleadings, an interim order and years of pendency should be decided on merits rather than dismissed for the statutory appeal; the alternative-remedy bar is self-imposed discipline, not a jurisdictional bar.

SCJ-164 · Parmarth Steels & Alloys (Pvt.) Ltd. &... 2013 All HC

Clean hands required material concealment bars writ 1 case

Suppression of a material fact — here an adverse civil-court finding on the petitioner's tenancy relevant to the connection claim — disentitles the petitioner to discretionary writ relief.

SCJ-171 · Vandana Srivastava 2017 All HC

Consumer cannot blame licensee for consequences of own delay 1 case

A disconnection following the consumer's own delay in invoking the Clause 6.5 remedy is attributable to him, not the licensee.

SCJ-253 · Mohammad Khalid 2014 All HC

Delay laches bar similarly situated claim 1 case

Delay/laches of decades bars a consumer from claiming the benefit of a favourable judgment obtained by other, timely litigants on the same point.

SCJ-068 · M/S Three Star Paper Mills Pvt. Ltd. 2018 All HC

Disputed questions of fact not adjudicable under article 226 1 case

Where the licensee and consumer squarely dispute whether an objection was filed/considered, the writ court will not resolve it and directs the statutory appeal.

SCJ-240 · Ishwar Chandra 2016 All HC

Interim order lapses on expiry 1 case

A time-bound interim protection order automatically lapses on expiry of its term; a consumer cannot rely on its continued existence, or on an unrelated pending application, to justify years of non-payment of an assessed sum.

SCJ-055 · M/S Hind Industries Limited 2011 All HC

No mandamus to enforce order without jurisdiction 1 case

A writ court will not issue a mandamus to enforce an order that is without jurisdiction and a nullity.

SCJ-262 · I.G. Shoes Pvt. Ltd. 2016 All HC

No negative equality in electricity supply decisions 1 case

A licensee's prior mistaken/inadvertent supply of another similarly-situated consumer via a non-compliant route cannot be invoked to compel repetition of that illegality for a different consumer — Article 14 does not guarantee negative equality.

SCJ-123 · Sigma Castings Ltd. & Another 2013 **All HC**

No promissory estoppel against statute 1 case

The licensee could not be held to a surcharge-exemption promise that would breach Section 24 of the Reforms Act; there is no estoppel against a statute, and a concession can be withdrawn in public interest.

SCJ-155 · Saini Alloys Pvt. Ltd. 2006 **All HC**

No relief to litigant without clean hands 1 case

A petitioner who withholds material facts and obtains an interim order by painting a false picture is not entitled to discretionary relief.

SCJ-225 · Raman Ispat (Pvt.) Ltd. & Anr. 2009 **All HC**

No writ restoration where connection alleged fraudulent and subjudice 1 case

The writ court will not restore an electricity connection under Article 226 where it is seriously alleged, in pending proceedings, to have been obtained by forged/fraudulent documents; the remedy is a fresh application or the outcome of the criminal case.

SCJ-194 · Dhyanendra Singh 2016 **All HC**

Own wrong maxim 1 case

Applied against a distribution licensee: the procedural prerequisite (amending the agreement) is deemed waived within a reasonable time of the consumer's request.

SCJ-001 · Indian Oil Corporation Ltd. 2024 **All HC**

Plea of jurisdiction can be raised at any stage 1 case

A plea that the civil court lacks jurisdiction (here under s.145) can be raised at any stage of the proceedings, even after years, since every court must satisfy itself of its jurisdiction.

SCJ-207 · Executive Engineer, Distribution Divis... 2017 **All HC**

Recall of order requires disclosed statutory basis 1 case

An assessing officer who withdraws/recalls a demand order during pending litigation must disclose the statutory power (under the Electricity Act or Supply Code, 2005) exercised to do so; failure to do so is prima facie misconduct.

SCJ-092 · Navi Hasan 2022 **All HC**

Sc precedent retrospective unless expressly prospective 1 case

Reaffirms, in an electricity-penalty-circular context, the general rule that judicial precedent (including a Supreme Court ruling correcting a High Court's erroneous statutory/circular interpretation) applies retrospectively to pending disputes unless the deciding court expressly limits it to prospective operation.

SCJ-128 · Chandra Mohan Goyal 2018 **All HC**

State instrumentality frivolous litigation costs 1 case

A State-owned licensee filing a meritless writ against its own correct billing determination is liable to costs, recoverable from the officials responsible for advising the filing.

SCJ-261 · Kanpur Electricity Supply Co. Ltd. and... 2011 All HC

M. Adjacent / Miscellaneous

4 PRINCIPLES · 4 CASE-APPLICATIONS

Natural justice in departmental inquiry 1 case

The Establishment must prove disciplinary charges by evidence led through a Presenting Officer; charges are not proof of themselves, and material used behind the delinquent's back vitiates the inquiry.

SCJ-017 · Dharendra Kumar Chaudhary 2024 All HC

S.141 director liability summoning stage not for quashing 1 case

Company-director liability under s.141 NI Act (whether the accused was 'in charge of and responsible for' the company's business) is ordinarily determined at trial; sufficient prima facie averments in the complaint preclude quashing at the summoning stage.

SCJ-132 · Sunil Todi & Ors. 2021 SC

Section 482 sparingly at pre trial stage 1 case

The inherent power under s.482 Cr.P.C. is used sparingly and not to appreciate evidence or test the genuineness of allegations at the pre-trial/summoning stage; where a prima facie offence is disclosed, the proceedings are not quashed.

SCJ-173 · Shailendra Kumar 2019 All HC

Serc mandatory legal member not mandatory judicial chairperson 1 case

Landmark Electricity Act institutional-architecture ruling: s.84(2) enabling (not mandatory) as to a judicial Chairperson, but mandatory legal/judicial Member requirement for any SERC exercising adjudicatory functions — foundational for any future case in this corpus touching SERC composition or the validity of Commission-level...

SCJ-130 · State of Gujarat & Ors. 2018 SC